

HOUSE No. 434

The Commonwealth of Massachusetts

PRESENTED BY:

John J. Mahoney and Judith A. Garcia

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to apportionment of lottery revenues.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John J. Mahoney</i>	<i>13th Worcester</i>	<i>1/14/2025</i>
<i>Judith A. Garcia</i>	<i>11th Suffolk</i>	<i>1/17/2025</i>

HOUSE No. 434

By Representatives Mahoney of Worcester and Garcia of Chelsea, a petition (accompanied by bill, House, No. 434) of John J. Mahoney and Judith A. Garcia relative to apportionment of lottery revenues. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to apportionment of lottery revenues.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 18C of chapter 58, as appearing in the 2022 Official Edition, is
2 hereby amended by striking out the section in its entirety and inserting in place thereof the
3 following:-

4 Section 18C. (a) In this section, "budgeted aid" shall mean unrestricted aid to cities and
5 towns, payments in lieu of taxes from the commonwealth to cities and towns, and education aid
6 to cities and towns under chapter 70.

7 (b) State lottery revenue shall be apportioned to cities and towns proportionate to lottery
8 sales in those cities and towns.

9 (c) The state treasurer shall, subject to appropriation but not subject to allotment under
10 section 9B of chapter 29, distribute budgeted aid to cities and towns. The distribution shall be
11 made in 12 equal payments, on or before the last day of each month.

Notwithstanding clause Forty-first of section 7 of chapter 4 or any other general or special law to the contrary, the commissioner of revenue or any official responsible for a local reimbursement or assistance program reported by said commissioner under section 25A shall use, as appropriate, the most recent city and town population estimates of the United States Bureau of the Census in calculating distributions or assessments under local reimbursement or assistance programs. Such distribution programs shall include, but not be limited to, the chapter 70 school aid program and aid to regional public libraries. Such assessments shall include, but not be limited to, air pollution control districts, the metropolitan area planning council, the old colony planning council, the Massachusetts Bay Transportation Authority, and any other entity for which said commissioner is required to give notice under said section 25A.

(d) This section shall not be construed to prohibit the distribution of other state government payments to cities and towns that are not budgeted aid through 1 or more of the monthly payments to cities and towns. Nor shall this section be construed to prohibit the deduction from distributions to satisfy amounts owed to the state by cities and towns under section 20A or any other general or special law.